

CUI
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
FAR 6.302-1 (ONE OR LIMITED NUMBER OF RESPONSIBLE SOURCES)
SOLICITATION NO.: SPE7L125Q1123

1. The Defense Logistics Agency, DLA Land and Maritime, is the contracting activity.
2. The action being approved is the acquisition of supplies on other than a full and open competition basis.

☒ Original ☐ Addendum: _____

☐ FAR Part 15 ☐ FAR Part 12 ☒ FAR Subpart 13.5

Contract Type:

☒ Firm-Fixed Price ☐ Fixed Price with Economic Price Adjustment (EPA)
☐ Cost Reimbursable ☐ Other (*explain*) _____

☒ Fixed Quantity: ☐ Option: ____% ☒ No Options

3. The supplies required to meet the using activity's needs are described as follows:

BRIEF DESCRIPTION	NSN/P/N	QUANTITY	EST. VALUE	AMSC
Arm Control, Vehicular Suspension	2530-01-605-3206	107 EA	\$ [REDACTED]	C

End item, weapon system, or class of item: WSIC: J WSDC: MRA End Item: Army MRAP

Estimated Base Value: \$ [REDACTED]

Estimated Total Value (Base + Options): \$ [REDACTED]

Maximum Contract Value: \$ [REDACTED]

Controlled by: DLA Land and Maritime
Controlled by: [FLSCD]
CUI Category: PROCURE/SSEL
Distribution/Dissemination Control: FED ONLY
POC: [REDACTED]

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Source Selection Information – See FAR 2.101 and 3.104
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4. The statutory authority permitting other than full and open competition is 10 U.S.C. 3204(a)(1) as implemented by FAR 6.302-1.
5. The Government requires spare parts that are form, fit, and functionally interchangeable with those currently used on the supported end item or weapon system. The acquisition is restricted to the following source(s) of supply, which are the only source(s) known to have the capability of furnishing the required supplies and the only source(s) currently approved by the design control activity.

CAGE	COMPANY NAME
338X5	ND DEFENSE LLC

The use of the authority at 10 U.S.C. 3204(a)(1) is based on:

☒ AMC 3. Acquire, for the second or subsequent time, directly from the manufacturer.

The following AMSC descriptions are-available in DFARS PGI 217.7506 Part 2.

☒ *AMSC C*. This part requires engineering source approval by the design control activity in order to maintain the quality of the part. Existing unique design capability, engineering skills, and manufacturing knowledge by the qualified source(s) require acquisition of the part from the approved source(s). The approved source(s) retain data rights, manufacturing knowledge, or technical data that are not economically available to the Government, and the data or knowledge is essential to maintaining the quality of the part. An alternate source must qualify in accordance with the design control activity's procedures, as approved by the cognizant Government engineering activity. The qualification procedures must be approved by the Government engineering activity having jurisdiction over the part in the intended application. If one source is approved, AMCs 3, 4, or 5 are valid. If at least two sources are approved or if data is adequate for an alternate source to qualify in accordance with the design control activity's procedures, AMCs 1 or 2 are valid.

On 10 March, 2025, the Product Specialist of record, [REDACTED], certified the accuracy of the approved source(s) and applicable AMC/AMSC codes. A copy of the certification is attached.

6. The following efforts are being taken to ensure that offers are solicited from as many sources as practicable: ☒ The acquisition will be synopsized on or about 13 March, 2025 for a period of 1 day.
☐ A synopsis exception cited in FAR 5.202 applies (Explain): _____.
☐ Dealers of the approved source(s) will be solicited.
☒ The solicitation will be posted to the DLA Internet Bid Board System for a minimum of 10 days.
☒ Other (Explain): Sources sought posted to SAM.gov from 20 February 2025 to 27 February 2025.

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable.

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A price analysis will be conducted based on a comparison of proposed prices received in response to the solicitation and/or a comparison of proposed prices to historical prices paid. Certified cost or pricing data is not applicable as this is being solicited as commercial under FAR part 13.5 procedures.

8. Market Research/Efforts to Obtain Competition:

Haystack: Haystack Gold was reviewed for this NIIN. Item is a component of the Army MRAP weapon system. No technical data listed in regards to size or material.

Sources Sought Notice:

[X] A Sources Sought Notice was posted to Contract Opportunities on SAM.gov on 20 February 2025 for a period of five business days and yielded the following results: Blank Market Survey attached, No Response Received.

Market Survey:

[X] A market survey was conducted on/during 20 February 2025.

Names and CAGE Codes of vendors contacted: Badger Truck and Automotive Group, Inc. (06YZ5)
Global Logistics Strategies, Inc. (7BUL6)
ND Defense, LLC. (338X5)

Names and CAGE Codes of vendors responding: Badger Truck and Automotive Group, Inc. (06YZ5)

Summary of information received relevant to sourcing (i.e., dealer/manufacturer; intended manufacturing source): 06YZ5 is small-sized dealer offering the part number 388206C91 from Navistar Defense, LLC (338X5). Badger Truck and Automotive indicated this item is not commercial, although market research shows this item has been procured as commercial in the past. [REDACTED]

This item has been solicited as commercial under FAR part 12 procedures under Contract # SPE7LX20D0158. CID database was reviewed, no documentation found. This determination was made previously using information provided by the approved source, who was unresponsive to this market survey, and internet search results. A search of www.maximinc.com and www.finditparts.com showed an extensive catalog of Navistar Spare Parts, with some suspension control arms that very closely resemble characteristics of this item, available for sale to the public with commercial pricing listed. **Contacting Officer finds this item to be commercial of a type.**

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Procurement History:

[X] A review of procurement history for potential manufacturing sources other than those listed above Section 5 above yielded the following results: No other manufacturing sources have been used.

General Internet Search:

[X] A general internet search for potential manufacturing sources other than those listed above Section 5 above yielded the following results: No other manufacturing sources identified.

9. A listing of sources, if any, indicating an interest in the acquisition is:

CAGE	COMPANY NAME
06YZ5	Badger Truck and Automotive Group, Inc

10. The following actions are being taken to overcome barriers to competition before any subsequent acquisition is made:

[X] The solicitation contains DLAD Procurement Note, L04 Offers for Part Numbered Items, which describes the process for submitting an alternate offer on the current procurement and requesting evaluation of an alternate product's technical acceptability for future procurements of the same item.

DLA Land and Maritime encourages vendors that may be interested in becoming an approved source, even if there is not an active solicitation, to contact the DLA Land and Maritime Source Approval Monitor at DSCCAO-SAR@dla.mil for additional information on the steps required to submit a Source Approval Request Package for evaluation.

In accordance with DFARS PGI 206.303-2,

[X] A copy of the previous justification from contract SPE7LX20D0158 is attached.

I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

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ALL.1261425684

Digitally signed by
MC GEE.JACOB.RANDALL.1261425684
Date: 2025.03.13 11:35:54 -04'00'

Contracting Officer

Date

APPROVAL/CERTIFICATION

I have reviewed and approve this justification:

APPROVAL REQUIREMENTS

[X] Up to \$750,000

Contracting Officer

Attachment(s):

Technical Certification

Prior J&A

MRCDM

Badger Truck and Automotive Group Inc. Market Survey